

Tamil Nadu Municipal Educational Service Rules, 1970

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State of Tamilnadu- Act

Tamil Nadu Municipal Educational Service Rules, 1970

TAMILNADU

India

Tamil Nadu Municipal Educational Service Rules, 1970

Rule TAMIL-NADU-MUNICIPAL-EDUCATIONAL-SERVICE-RULES-1970 of 1970

Published on 1 January 1970

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Tamil Nadu Municipal Educational Service Rules, 1970

1.
These rules may be called the Tamil Nadu Municipal Educational Service Rules, 1970.

2.
Constitution.

- The service shall consist of the following classes and categories: -

Class I

Municipal Educational Officers.

Class II

Headmaster/Headmistress of High School Grade-I.

(1000 pupils and above)

Class II (A)

Headmaster/Headmistress of High School Grade-11.

(Below 1000 Pupils)

Class III

Category 1

Engineering Instructors.

Category 2

Assistant Engineering Instructors.

Class IV

Category 1

Assistants (B.T.) of High School.

Category 2

Supervisors (B.T.) of Elementary.

Category 3

Headmaster (B.T.) of Upper Primary Schools.

Category 4

Tamil Pandit. Grade I.

Category 5

Physical Director.

Class IV(A)

Agricultural Instructor

Class IV (B)

Secretarial Assistant.

Class IV (C)

Instructor in Music and Dancing

Class IV (D)

Music teachers

Class IV (E)

Instructor in Drawing and Painting or Arts

Master.

Class IV (F)

Assistant in Domestic Science

Class IV (G)

Textile Technology-Senior Instructor in Weaving.

Class V:

Category 1

Commercial Instructors in High Schools

Category 2

Supervisors of Elementary Schools

Category 3

Headmasters of Elementary Schools

Category 4

Secondary Grade Teachers

Category 5

Tamil Pandit, Grade II

Category 6

Physical Education Teachers, Grade I

Category 7

Physical Education Teachers, Grade II

Category 8

Weaving Instructor (Senior)

Category 9

Weaving Instructor (Junior)

Category 10

Drawing Master.

Category 11

Sewing Mistress in High Schools

Category 12

Music Mistress in High Schools

Category 13

Wood work Craft Instructor in High School

Category 14

Binding Instructor

Category 15

Tailoring Instructor

Category 16

Arts Instructor

Category 17

Junior Instructor in Weaving

Category 18

Junior Instructor in Printing

Class VI

Senior Mechanic

3.

Method of Appointment.

- Appointment to the classes and categories mentioned in column (1) of the Table below shall be made by the method specified in the corresponding entries in column (2) thereof: -

Class and Category

Method of Appointment

(1)

(2)

Class I

Direct recruitment or promotion from Class II

Class II

Promotion from Class II (A)

Class 11(A)

Promotion from categories 1 to 4 of Class IV and Class IV (B)

Class III:

Category 1

Direct recruitment

Category 2

Direct recruitment

Class IV:

Category 1 Category 2

Direct recruitment or promotion from the categories in Class

V

Category 3

Category 4

One-third vacancies by direct recruitment and two-third vacancies by promotion from categories 2 to 5 of Class V

Category 5

Direct recruitment or promotion from categories 6 and 7 of

Class V

Class IV (A)

Direct recruitment or promotion from categories 2 to 4 of

Class V

Class IV (B)

Direct recruitment or promotion from categories 2 to 4 of

Class V

Class IV (C)

Direct recruitment

Class IV (D)

Direct recruitment

Class IV (E)

Direct recruitment

Class IV (F)

Direct recruitment

Class IV (G)

Direct recruitment or promotion from category 17 of Class V

Class V:

Category 1

Direct recruitment

Category 2

Promotion from categories 3 and 4

Category 3

Promotion from Category 4

Category 4

Direct recruitment

Categories 5 to 18

Direct recruitment

Class VI

Direct recruitment:

Provided that when sufficient number of candidates qualified for appointment by promotion is not available, the appointing authority may with the concurrence of the State Government, resort to direct recruitment.

4.

Unit of appointment.

- For purposes of appointment, transfer, discharge for want of vacancies, reappointment and appointment as full members of the service, the unit shall be as follows; -

Class

Unit

(1)

(2)

Class I, II and III

All the Municipalities in this State taken together.

Classes IV to VI (including) Classes IV (A) to (G)

The Municipality concerned.

5.

Recruiting and appointing authority.

(a)

The recruiting authority in respect of the classes mentioned in column (1) below shall be those specified in the corresponding entry in column (2) thereof: -

Class

Recruiting authority

(1)

(2)

Classes I, II and III

Selection Committee

Classes IV (including) Classes IV (A) to IV, (G), V and VI

Appointment Committee.

(b)

The appointing authority in respect of the classes mentioned in column (1) below shall be those specified in the corresponding entry in column (2) thereof: -

Class

Recruiting authority

(1)

(2)

Classes I, II and III

Director of Municipal Administration

Classes IV to VI (Including) Classes IV(A), IV (G) C

The Municipal Commissioner concerned.

6.

Qualification.

- No person shall be eligible for appointment to the Classes and categories mentioned in column (1) of the table unless he possesses the qualification specified in the corresponding entry in column (2) thereof: -

Classes and Categories

Qualification

(1)

(2)

Class I:

Direct recruitment. - A first class or second class degree of the M.A. or Honour's of any University recognised by the University Grants Commission for the purpose of its grant with subjects or languages as may be specified with a minimum period of 2 years of service as B.T. Assistant in a recognised secondary School, Training School or as Assistant Professor in a Training college in Tamil Nadu.

Promotion. - Experience as Headmaster or Headmistress in a High School under a Municipal Council for a period of not less than 5 years.

Class II

1. A degree of B.A. and B.Ed, or B.T. or B.Sc. and B.T. or B.Ed of any University recognised by the University Grants Commission for the purpose of its grant; and

2. Experience for a period of not less than five years in category 1 (Engineering Instructors) of Class III or in either of categories 1,2 and 3 of Class IV and Class IV(B) (Secretarial Assistant) or experience for a period of not less than five years, after, acquiring B.T. qualification in Category 4 in Class IV:

Provided that an Engineering Instructor should possess a degree in a language or a subject of any University recognised by the University Grants Commission and a degree in teaching of a University of the State of Tamil Nadu.

Class III

Categories 1 and 2(1) The degree of B.E.

(Mechanical) or B.E. (Electrical) or

(2) L.M.E. or L.E.E. with not less than three

years workshop experience or teaching experience in a recognised institution after passing the diploma examination; or

(3) B.Sc. (Physics Main and Electrical or

Mechanical Engineering Subsidiary, with not less than three years workshop experience or teaching experience in a recognised school; or

(4) B.Sc. (Physics main and Electrical or

Mechanical Engineering subsidiary), B.T. with not less than two years workshop or teaching experience in a recognised school; or

(5) Instructor with L.M.E. or L.E.E. qualification

and Instructors who are holders of B.Sc. degree with Physics Main and Electrical or Mechanical Engineering as Subsidiary.

(6) Instructors who are holders of B.Sc. degree

with Physics Main and Electrical Engineering as Subsidiary and holders of B.T. degree.

Class IV

Should hold the degree of B.A or B.Sc, and B.T.

or B.Ed, of any University recognised by the University Grants Commission for the purpose of its grant.

Category 1

Category 2

Category 3

Category 4

(a) A degree in Tamil language of the Madras, Annamalai or Madurai University;

A completed Secondary School-Leaving Certificate and title or Oriental learning conferred by the Madras or Annamalai or Madurai University in Tamil and

(b) The B.T. or B.Ed, degree of the Madras

University or the B.Ed, degree of the Annamalai University or Madurai University or a Trained Teachers' Certificate of the Secondary Grade or a Senior Grade Basic Trained Teacher Certificate or Successful completion of the Pandits Training course or Diploma in teaching awarded by the Annamalai University.

Category 5

(i) A degree of the Madras or Annamalai or Madurai University or any other University in India.

(ii) (a) A degree or diploma in Physical Education of any University in Tamil Nadu or its equivalent; or

(b) the Diploma awarded by the Y.M.C.A. college of Physical Education prior to 1949; or

(c) In the case of women, a diploma in Physical Education awarded by the Government.

Explanation.- Preference shall be given to the

persons who, in addition to the above qualifications possess B.T. Degree of the Madras University or B.Ed. Degree of the Annamalai or Madurai Kamaraj University.

Class IV-A

Should hold a degree of the B.Sc. in Agriculture; provided that when a person possessing that qualification is not available, a person possessing the higher certificate in Agriculture may be appointed.

Class IV-B

(i) Must possess a B.Com, degree and B.T.or B.Ed., degree of a University; or
(ii) B.Com. degree and Technical Teachers' Certificate in the subject concerned; or
(iii) Diploma in commerce (D.Com) and Technical Teachers' certificate in the subject concerned issued by the Commissioner for Government Examinations, Chennai:
Provided that candidates possessing qualifications prescribed in clause (iii) shall be considered only, when candidates possessing qualifications prescribed in clauses (i) and (ii) are not available.

Class IV-C and D

(1) Graduate in Music or Diploma in Music; or
(2) Title holders of Sangeetha Siromani or Sangeetha Bushanam with S.S.L.C. or Matriculation; or
(3) Dancing Diploma obtained after undergoing the prescribed course in dancing at Kalakshetra, Adyar

Class IV-E

Completed S.S.L.C. and II Class Diploma in Drawing granted by the College of Arts and Crafts, Madras, (or) Government Diploma in Drawing

Class IV-F

B.Sc. (House Science with L.T. or B.T. Provided that when a person possessing the L.T or B.T. degree is not available, an untrained Graduate in Home Science.

Class IV-G

Licentiate in textile manufacture with two years experience in Weaving in a recognised textile manufacturing concern; or
Supervisors' course of the Government Textile Institute, Washer-manpet with three years experience in a recognised weaving concern and the minimum general educational qualification.

Class V

Category 1

Technical Teachers' Certificate (Higher Grade in Typewriting)

Category 2

Should possess an S.S.L.C. and Secondary Grade Trained Teachers' Certificate.

Category 3

Category 4

Category 5

Oriental Title with Pandits or Secondary Grade Training for existing incumbents in service on the first

January, 1948, Oriental title only.

Categories 6 and 7

(1) Diploma in Physical Education or Higher

Grade Certificate in Physical Education or

(2) Holders of Lower Grade Certificate in

Physical Education or holders of Certificate of Physical

Training after undergoing one year training in the Y.M.C.A.

College of Physical Education, Saidapet, Madras, before 1937-38

or the special Certificate issued by the Secretary to

Commissioner for Government Examinations to Ex-Servicemen

trained as physical Training Instructors.

Categories 8 and 9

Form III passed or E.S.L.C. or its equivalent

with successful completion of Artisan or Instructor's Course

Certificate of the Government Textile Institute and Technical

Teacher's certificate; or Government Technical Examination

(Lower Grade) Certificate and Technical Teacher's Certificate;

or Bunayee or Khadi Pravesika Course (one Year) of the All India

Spinner's Association, Tiruppur, and Technical Teachers'

Certificate or E.S.L.C. or equivalent with Government Technical

Teachers' Certificate; completed S.S.L.C. with Weaving

Instructors' Course certificate of Teachers' College, Saidapet,

or completion of the Artisan Course or Instructor's Course

Certificate of the Government Textile Institute, Chennai and

Technical Teacher's Certificate or completed S.S.L.C. with

Bunayee or Khadi Pravesika Course (one year) of the All India

spinners Association, Tiruppur and Technical Teacher's

Certificate; or completed S.S.L.C. with Government Technical

Examination (Lower) and Technical Teachers' Certificate.

Category 10

Form III passed or VIII Standard or E.S.L.C. or

equivalent with Government Technical Examination (Higher) in

Free hand Outline and Model Drawing and Technical Teachers'

Certificate; or Form III passed or VIII Standard or E.S.L.C. or

equivalent with Government Diploma in Drawing and Technical

Teacher's Certificate; or S.S.L.C. with Government technical

Examination (Higher Grade) in Freehand Outline and Model Drawing

and Technical Teachers' Certificate; or B.A. degree with Drawing

and painting under Part III and Technical Teachers Certificate.

Category 11

Completed S.S.L.C. with Group certificate in

Needle work, Dress Making and Technical Teachers' Certificate;

completed S.S.L.C. with Industrial School Certificate and

Technical Teachers Certificate or Form III passed or E.S.L.C. or

equivalent with industrial School Certificate and Technical

Teachers' Certificate or Group Certificate in Needle work and

Dress Making and Technical Teacher's Certificate.

Category 12

Form III passed or E.S.L.C. or equivalent with

Government Technical Examination (Higher) in Indian Music and

Technical Teachers' Certificate or Teachers' Certificate in

Indian Music awarded by the Commissioner for Government Examinations; or Form III passed or E.S.L.C. or equivalent with Sangeetha Bhaushana of the Annamalai University and Technical Teachers' Certificate or Form III Passed or E.S.L.C. or equivalent with Sangeetha Vidwan title of the Central Carnatic Music awarded by the Commissioner for Government Examinations and Technical Teachers' certificate or S.S.L.C. completed with Government Technical Examination in India Music (Higher Grade) and Technical Teachers' Certificate or Certificate in Indian Music awarded by the Commissioner for Government Examinations.

Category 13

Completed S.S.L.C. with Manual Training Certificate or Craft Instructor's Course Certificate of Teachers' College, Saidapet, or completed S.S.L.C. with Industrial School Certificate and Technical Teachers' Certificate.

Categories 14 to 18

The qualifications prescribed under Rule 13 of the Tamil Nadu Educational Rules.

Class VI

The qualifications prescribed under Rule 13 of the Tamil Nadu Educational Rules.

Explanations: - (1) A "recognised school" or "recognised secondary school" shall mean a school maintained by or opened with the sanction of the Government of Tamil Nadu or for which recognition has been accorded under the Tamil Nadu Educational Rules.

(2)

A "recognised institution" shall mean an institution by the Director of Technical Education of the Government of Tamil Nadu.

(3)

A "recognised textile manufacturing concern" and a "recognised weaving concern" shall mean a textile manufacturing concern or a weaving concern recognised by the Director of Technical Education of the Government of Tamil Nadu.

7.

Qualification in Tamil medium.

- Wherever the qualification "a degree in Arts or Science" is prescribed for appointment by direct recruitment "a degree in Arts or Science" obtained through a study in Tamil medium shall be preferred:

Provided that in the absence of such qualified candidate, candidates who have studied in English medium shall be considered for appointment:

Provided further that in respect of candidates of linguistic minorities, Government will relax, wherever necessary and feasible, the rules regarding qualifications in Tamil medium.

8.

Procedure for recruitment.

- The selection committee or the Appointment Committee, as the case may be shall in the matter of recruitment, adopt the following procedure: -

(1)

By Selection Committee: - (a) Direct Recruitment. - The Director of Municipal Administration shall estimate the number of substantive vacancies likely to arise in each category for which recruitment has to be made by the Selection committee. The estimate shall cover the calendar year for which the recruitment is made. In July of every year, the Director of Municipal Administration shall advertise the number of such vacancies available and invite applications from all eligible candidates and shall have the applications scrutinised by the Director of School Education. The applications so scrutinised together with the estimate of vacancies shall be furnished to the selection Committee. The selection Committee shall then select candidates on the basis of an interview only. The recruitment shall be made separately for

each category. The names of the candidates selected for appointment shall be arranged in the order of preference in each list. The list thus prepared shall be the list of 'approved candidates' and furnished to the appointing authority.

(b)

Promotion. - The Director of Municipal Administration shall obtain from every Commissioner (i) the names of all eligible candidates in the employment of the municipality concerned and (ii) the Commissioner's views on the suitability or otherwise of the candidates for promotion. He shall then consult the Director of School Education and arrange their names in the order of their seniority in the category from which promotion has to be made and also record his own views on the fitness or otherwise of the candidates. He shall thereafter place the lists before the Selection Committee which shall scrutinise them and draw the promotion panel for each category.

It shall be open to the Selection Committee to interview any candidate, if it has any doubt about his fitness for promotion or the rank that should be assigned to him in the promotion panel. The Selection Committee shall, after it has drawn the promotion panel in the manner aforesaid, send it to the appointing authority.

(2)

By Appointment Committee: - (a) Direct Recruitment. - The Commissioner of the municipality concerned shall call for a list of eligible candidates from the local Employment Exchange, and shall, after having the list scrutinised by the Chief Educational Officer concerned, place it before the Appointment Committee. The Committee shall, then select the required number of candidates on the basis of an interview only. If sufficient number of candidates from the Employment Exchange is not available, the Commissioner shall advertise the vacancies in the local dailies of the district and invite applications from eligible candidates. The applications, after scrutiny by the Chief Educational Officer concerned, shall be placed before the Appointment Committee. The Appointment Committee shall then select the candidates on the basis of an interview only. If a selection is to be made from such of those persons who are employees of the Municipal Council, the Employment Exchange need not be consulted.

The selection shall be made separately for each category. The names of the candidates selected for the appointment shall be arranged in the order of preference in each list. The lists thus prepared shall be the lists of approved candidates. The appointment Committee shall send the list to the Commissioner immediately after it is drawn up.

(b)

Promotion. - The Commissioner of the Municipality concerned shall prepare the names of all eligible candidates in the employ of the Municipality for promotion. He shall, then, arrange the names of the candidates in the order of their seniority in the category from which promotion has to be made and also record his own views on the fitness or otherwise of the candidates. He shall, then, consult the Chief Educational Officer concerned and thereafter place the lists before the Appointment Committee. The Appointment Committee will scrutinise the lists and draw the promotion panel under each category.

It shall be open to the Appointment Committee to interview any candidate, if it has any doubt about his fitness for promotion or the rank that should be assigned to him in the promotion panel.

The Appointment Committee shall, after it has drawn the promotion panel in the manner aforesaid, send it to the appointing authority.

9.

Probation.

- Every person appointed to a class or category by direct recruitment shall, from the date on which he joins duty, be on probation for a total period of two years on duty within a continuous period of three years.

10.

Reservation of appointment.

- The rule of reservation in General Rule 14 shall apply separately to each of the categories when appointments are made by direct recruitment.

11.

Passing of Test.

- Every person appointed to Class II shall not be eligible to draw the second and subsequent increments (other than first increment) in the time scale of pay applicable to him unless he passes a test as laid down in the Annexure to paragraph 31 of the Municipal Manual within the period of two years from the date of appointment. The ineligibility shall not have the effect of postponing his future increments after he passes the said test:

Provided that in the cases of persons appointed as Class II prior to 14-2-1979, i.e., the date of publication of this rule in

the Tamil Nadu Government Gazette they shall not be eligible to draw the future increments unless they pass the above test within a period of two years from the said date:

Provided further that the test need not be passed in the case of Headmasters/ shall not be eligible to draw the last four increments in that scale [Head Mistresses who have completed the age of 45 years as on 14.2.1979; and person who are appointed as Head Masters/Head Mistresses after they completed the age of 45 years on 14.2.1979.]

[Added by SRO-A 38/79 RD & LA, dated the 16th January 1974.]

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Translation